
Appeal Decision

Site visit made on 1 September 2026

by **H Miles BA (hons), MA, MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 22nd September 2026

Appeal Ref: 6011736

Land adjacent to Oaklands Drive, Copthorne Bank, Copthorne RH10 3JD

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by H Evans of Asprey Homes Southern Ltd against the decision of Tandridge District Council.
 - The application Ref is TA/2025/1318.
 - The development proposed is erection of seven dwellings with access, associated garaging and parking.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. A planning obligation has been submitted which seeks to provide mechanisms relating to matters including travel vouchers and biodiversity net gain. I will return to these later in the decision.

Main Issues

3. The main issues are:
 - Whether the site would be a suitable location for the proposed development with particular regard to accessibility by sustainable transport modes.
 - Whether the proposal would be inappropriate development in the Green Belt having regard to the National Planning Policy Framework 2026 (the Framework) and any relevant development plan policies.
 - The effect of the proposal on the openness of the Green Belt.
 - Whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Sustainable Transport Modes

4. The site is located close to Copthorne Bank, which, in the vicinity, has 30mph-40mph speed limits, recently reduced from 50mph. There is a pub close by with access via a footpath. Copthorne Bank then leads to the services and facilities at Copthorne with a shop, school and village hall around 1km away. To access these on foot occupants would have around a 15 minute walk along a mainly unlit road.

There are footpaths along the part of the road close to the site, however there is a section where pedestrians would need to walk in the road and, even though the route is straight, this would not be attractive to occupants walking from the site. Particularly in hours of darkness, for children and those with mobility issues. There would be space for occupants to store cycles, however the road is mainly unlit and combined with the traffic flows it would not be an attractive cycling route for the majority of occupiers, particularly vulnerable road users.

5. There is also a bus stop nearby, it operates school services and an hourly service between Crawley and Redhill Monday-Sunday. They would be supplemented by the Surrey Connect on demand bus service. Whilst the bus stops do not have facilities such as shelters, they are close to the site and accessed via a footpath. This would enable certain journeys from the site to be taken by bus.
6. The appeal scheme would secure a residential travel information statement which would include up to a £250 contribution towards bus or cycle travel for new occupiers. However, a financial incentive would not alter the features of the site above. Nor would it apply to future occupiers if houses were sold. The appellant has also suggested an extension to the 30mph zone in this location. However no evidence has been provided with regard to the acceptability of such an alteration by the highway authority or other relevant body. As such, the evidence does not indicate that it would occur, consequently a Grampian condition would not be reasonable.
7. This is a rural area, however taking all the above into account, opportunities to improve sustainable transport have not been shown to exist. The Department for Transport Connectivity Tool rates give the site an overall score of 52 out of 100 and due to the nearby bus route, some limited journeys to and from the site could be taken by bus. However, for the reasons above, journeys on foot and bike would not be attractive to the majority of occupants. As such, there is not a genuine choice of transport modes for residents, the location would not limit the need to travel by private car and it would not be a sustainable location.
8. The Council reached a different conclusion at the nearby Nyahlands Farm (LPA ref 2025/499) to their decision on the current application. I have taken both of these into account. Nevertheless, for the detailed reasons set out above, it can be seen that I agree with the Council's conclusions in the specific circumstances of this case. The appeal decision at Woodside House (APP/M3645/W/24/3347328) also concluded in that location future occupants would be dependent on the use of a private car, however the scale of the proposed development was notably different to that before me now, and as such it is not directly comparable. The decision at Antlands Lane, Shipley Bridge (2024/332) was also for a smaller development, and I do not have detail that the circumstances are clearly similar to this appeal.
9. Therefore, the site would not be a suitable location for the proposed development with particular regard to accessibility by sustainable transport modes. As such, it would be contrary to policy DP5 of the Tandridge Local Plan Part 2: Detailed Policies (2014) (DP). It seeks to provide safe and suitable access to the site, achievable by all and promote access by public transport, foot and bicycle where appropriate, amongst other things.

Whether Inappropriate Development

10. The Framework states that inappropriate development is, by definition, harmful to the Green Belt. Development in the Green Belt is inappropriate and thus should be approved only if very special circumstances exist, unless it falls within one of the exceptions in the Framework. This is broadly echoed by Policies DP10 and DP13 of the DP. Policy DP13 does not provide a specific exception relating to grey belt land, however it does include 'any other form of development as listed under paragraph 90 of the Framework.' Although the paragraph/policy number has been updated, it is generally in accordance with the Framework.
11. Of relevance to the appeal, Policy GB7 (1) (g) of the Framework provides an exception relating to grey belt land. In order to benefit from this, the proposed development must satisfy all the criteria of the policy. These include that the development would be in a sustainable location, with particular reference to Policy TR3 of the Framework. For the reasons set out above, the proposed development would not be in a sustainable location and would not satisfy this criterion. There is no dispute between the parties in relation to points GB7 (1) (g) (i, ii and iv). However, due to the conflict with Policy GB7 (1) (g) (iii) identified, it would not fall under this exception.
12. Therefore, the appeal scheme would be inappropriate development in terms of the Framework and Policy DP10 and DP13 of the DP, the aims of which are set out above.

Openness

13. Openness has both spatial and visual dimensions. The proposed development would introduce seven permanent two storey houses with associated access, parking, domestic gardens and residential paraphernalia to the site. They would be similar to the existing properties along Oaklands Drive. Nevertheless, the appeal scheme introduces substantial bulk, massing and activity from seven dwellings to what is currently an open, undeveloped site. The houses would be clearly seen from the nearby properties and although planting which could be provided or retained along Copthorne Bank would provide some screening, the properties would be likely to be seen from the road, particularly from the entrance to the site and when trees were not in leaf. As such, taken together there would be clear harm to openness as a result of the appeal scheme.
14. Consequently, for the reasons above, the proposed development would result in harm to the openness of the Green Belt and would be contrary to the Framework in this regard.

Other Considerations

15. During the course of the appeal the Council stated that it is no longer pursuing reasons for refusal relating to visibility onto Copthorne Bank and the effect on the Priority Habitat. Based on the evidence before me now, I agree with these conclusions.
16. The Council cannot demonstrate a 5 year supply of deliverable housing sites. The appellant states that there is a 2.17 year supply which is not disputed by the Council and the latest Housing Delivery Test figures show a measurement of 38%. The proposed development would provide the social and economic benefits of

seven houses in an area where there is a clear shortfall and I afford substantial weight to the benefits of providing these homes. I have also taken into account the scale of the development proposed. Overall, the benefits would be moderate in this case.

Green Belt Balance

17. The proposal would be inappropriate development in the Green Belt which is, by definition, harmful. There is also harm to the Green Belt due to the effect on openness. In addition, there are unacceptable effects with regard to sustainable transport. Substantial weight should be given to the harm to the Green Belt. Very special circumstances will not exist unless the harm to the Green Belt and any other harm is clearly outweighed by other considerations.
18. On the other hand, the proposed development results in the moderate benefits identified above. Consequently, the considerations advanced by the appellant, even when considered together, do not clearly outweigh the totality of the harm. The very special circumstances necessary to justify the development therefore do not exist. As such the proposal conflicts with the Framework and DP10 and DP13 of the DP, the aims of which are set out above.

Planning Balance

19. The development would be outside a settlement, However Policy S5 (5) of the Framework states that it does not apply to development proposals in the Green Belt which, in these circumstances, should be determined in accordance with policies GB6 and GB7. The development proposals do not accord with an up-to-date development plan or the decision-making policies in the Framework. Consequently, the presumption in favour of sustainable development does not apply in this case.

Conclusion

20. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above the appeal should be dismissed.

H Miles

INSPECTOR